

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service, indicating mail service at the address provided by the Defendant on the Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**15. 9:00 AM CASE NUMBER: N25-0377
CASE NAME: KATHERINE STAUDT VS. UNEMPLOYMENT INSURANCE APPEALS BOARD
HEARING ON DEMURRER TO: FIRST AMENDED PETITION FOR WRIT OF MANDATE
FILED BY: UNEMPLOYMENT INSURANCE APPEALS BOARD**

TENTATIVE RULING:

Petitioner has filed an amended petition for writ of administrative mandamus ("Amended Writ").

Respondent has demurred, contending that Petitioner is time-barred from raising the issue.

Background

On 8/15/24, the California Unemployment Insurance Appeals Board ("Appeals Board") affirmed the decision of an administrative law judge to deny benefits to the Petitioner for a particular period of

time. On 2/20/25, Petitioner filed a petition for a writ of administrative mandate (“Initial Writ”) challenging the Appeals Board’s decision. This Initial Writ was untimely, as the governing statute, Section 410 of the Unemployment Insurance Code, prescribes no more than a 6 month period within which a petitioner must file a challenge. This court granted Respondent’s demurrer to this Initial Writ, on the basis that it was untimely, but gave the Petitioner leave to amend, in which she could attempt to provide a valid excuse for the delay in filing.

In the Amended Writ, Petitioner claims that she incurred a medical procedure on 8/5/24, and that she was admitted into the hospital on 8/18/24, and remained there until the end of the month. After release, Petitioner writes that she was symptomatic, struggling, and “almost re-hospitalized” in September, 2024. She then writes that “resumed personal affairs” as best as she was able “while contending with enduring effects” of the health incident.

Analysis

A demurrer is proper when the pleading reveals the court has no jurisdiction of the subject matter of the cause of action alleged in the pleading. (Code Civ. Proc., § 430.10, subd. (a).) A demurrer may be brought to challenge a legally insufficient petition for writ of mandate. (*SJJC Aviation Services, LLC v. City of San Jose* (2017) 12 Cal.App.5th 1043, 1051-1052.)

When considering a demurrer, the court should accept as true “all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Zelig v. County of L.A.* (2002) 27 Cal.4th 1112, 1126, quoting *Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) A demurrer for lack of jurisdiction is proper where the litigation is untimely under the applicable statute of limitations. (Code Civ. Proc., § 430.10, subd. (a).)

California courts have long held that a responding party may also demur to an untimely complaint on the grounds that the complaint does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e); *Brown v. Martin* (1864) 25 Cal. 82, 93.) A demurrer lies where the untimeliness of the lawsuit clearly and affirmatively appears on the face of the complaint. (*Coalition for Clean Air v. City of Visalia* (2012) 209 Cal.App.4th 408, 420.)

When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The burden rests on the plaintiff to prove the possibility of amendment. (*Id.*)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman’s Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. (*Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.)

Unemployment Insurance Code (“UIC”) section 410 imposes a clear six-month statute of limitations for challenging a CUIAB decision, requiring initiation of a writ action “not later than six months after

the date of the decision of the Appeals Board.” (AR, p. 146; see *Tarkington v. Cal. Unemp. Ins. Appeals Bd.* (2009) 172 Cal.App.4th 1494, 1502; Unemp. Ins. Code, § 410 [“[J]udicial review from an appeals board decision shall be exercised not later than six months after the date of the decision of the appeals board or the date on which the decision is designated as a precedent decision, whichever is later”].) If there is a clear bar to an action by an applicable statute of limitations, a petitioner ““must plead facts which show an excuse, tolling, or some other basis for avoiding the statutory bar”” to avoid dismissal of their complaint for untimeliness. (*Tarkington, supra*, 172 Cal.App.4th at p. 1503 quoting *Ponderosa Homes, Inc. v. City of San Ramon* (1994) 23 Cal.App.4th 1761, 1768.)

In the instant matter, Petitioner’s Initial Writ was clearly filed beyond the 6 month deadline, which, after factoring in the holiday on 2/17/25, gave her until 2/18/25, to file. She was late.

And Petitioner’s justification for this late filing, that she was unwell, doesn’t justify this failure. Even assuming that the duration of her sickness was true, she still had over four months to file her petition.

Allowing Petitioner leave to amend, again, is futile. There is no reasonable possibility, at this point, that Petitioner can overcome this defect.

Disposition

Respondent’s Demurrer is Sustained.

Petitioner will not be given leave to amend.

Respondent to file Order.